

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

FRANCIS SHEKA KANU, *Complainant*

v.

EJIKE DICKSON EZE DBA EJIKE INTERNATIONAL TRADE LIMITED; SEALINES INTERNATIONAL; SEAMATES INTERNATIONAL, INC.; AND MAERSK, *Respondents*.

DOCKET NO. 25-05

Served: June 18, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER DENYING REQUEST FOR AN EXTENSION

On June 11, 2025, Complainant emailed judges@fmc.gov, and did not copy any other parties. A copy of the Complainant's June 11 email is attached as Appendix A.

Complainant made two requests in the June 11 email. First, the Complainant asked for a copy of the May 28, 2025, Order Requiring Complainant to File Motion for Leave to Amend and Proposed Amended Complaint (the "May 28 Order"), to be sent to him either via an email to francesgats@gmail.com, or to a physical address in North Carolina. Complainant stated in the June 11 email that he did not receive the May 28 Order previously. Second, Complainant also "asked for an extension of time subject to the commission directive within which to comply with the Said Order."

Regarding the first request, the Office of Administrative Law Judges responded to the June 11 email (specifically, to the email address francesgats@gmail.com), attached a copy of the May 28 Order, and instructed Complainant: "Going forward, please copy all parties in any communication with this Office." The Office of Administrative Law Judges also copied all parties on the response email. A copy of the response is attached hereto as Appendix B.¹

Regarding Complainant's second request, namely for an extension of time, I construe this request as a motion for an extension of time. The motion for extension of time is **DENIED**. There are several reasons for this.

¹ A signed copy of the May 28 Order was emailed to Complainant. In addition, the email in Appendix B was redacted to remove BCC email addresses.

First, the Initial Order states: “Any request for action by the Commission or presiding officer must be made by motion, not by letter or email request or as part of a joint status report.” (Initial Order, ¶ 16).

Second, before filing a procedural motion, such as a motion for an extension, the parties must: “attempt to discuss the anticipated motion with each other in a good faith effort to determine whether there is any opposition to the relief sought. . . .” (46 C.F.R. § 502.71(a)). Further, the party filing the motion must: “state within the body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed.” (*Id.*). There is no indication in the Complainant’s motion for extension that he made any attempt to discuss the motion with the Respondents.

Third, it is unclear what Complainant wants extended. His June 11 email refers to both the May 28 Order, as well as the Second Order Requiring Complainant to File Motion for Leave to Amend and Proposed Amended Complaint, issued June 9, 2025 (the “June 9 Order”). He then asks for an extension time within which to comply “with the Said Order.” It is unclear what “the Said Order” references.

Regardless, the Complainant is not pursuing this matter diligently. Complainant has not responded to either Maersk’s or SeaLines International and SeaMates International, Inc.’s Motions to Dismiss, nor has Respondent responded to the May 6, 2025, Order to Show Cause, requiring Complainant to respond to the Motions to Dismiss. Both the May 28 and June 9 Orders explain why the Complaint fails to state a plausible claim, and has given Complainant more than enough time to file a motion for leave to amend. To the extent Complainant asserts that he was unaware of the filings in this matter, he has provided the parties and the Commission with three separate emails, has not properly notified the parties or the Commission of correct email to use. (46 U.S.C. § 502.2(i) (“All parties and representatives are under a continuing obligation to provide the Commission and all other parties in a proceeding with accurate and current contact information including a street address, telephone number and e-mail address.”)).

For these reasons, Complainant’s motion for extension is **DENIED**.

As noted in the June 9 Order, Complainant must file a Motion for Leave to Amend the Complaint, together with a Proposed Amended Complaint, **no later than June 24, 2025**. Failure to comply with this Order may result in the dismissal of Complainant’s complaint for failure to prosecute pursuant to 46 C.F.R. § 502.72(b).

Richard C. Ambrow Jr -S
Digitally signed by Richard C. Ambrow Jr -S
Date: 2025.06.18 11:08:48 -07'00'

Richard Ambrow
Administrative Law Judge

APPENDIX A



Outlook

Re: Docket No. 25-05 - Francis Sheka Kanu v. Ejike Dickson Eze dba Ejike International Trade Limited; Sealines International; Seamates International, Inc.; and Maersk

From Francis Kanu <francesgats@gmail.com>

Date Wed 6/11/2025 12:04 PM

To Judges <Judges@FMC.gov>

June 11, 2025

Office of Administrative Law Judges
Federal Maritime Commission
800 North Capitol St., NW
Washington, D.C. 20573
Tel: 202-523-5750
Email: judges@fmc.gov

FRANCIS SHEKA KANU

Complainant,

v.

EJIKE DICKSON EZE, SEALINES INTERNATIONAL, SEAMATES INTERNATIONAL INC, and
MAERSK,

Respondents.

DOCKET NO. 25-05

**RE: SECOND ORDER REQUIRING COMPLAINANT TO FILE MOTION FOR LEAVE TO
AMEND AND PROPOSED AMENDED COMPLAINT**

The subject matter above is relevant. Whereas, the complainant is in receipt of the order of the administrative law judge dated June, 09 2025.

The said order requires the complainant to file a Motion for Leave to amend the complaint, together with a Proposed Amended Complaint, no later than June, 24, 2025.

Per the complainant's earlier notice of his compromised email (francesgats@bellsouth.net) to the commission, and by the reason of that compromise, the complainant DID NOT receive the said order of May 28, 2025.

The complainant by this email/notice kindly requests that a copy of the Said Order of May 28, 2025 be sent to him for perusal and compliance through the following email (francesgats@gmail.com) or his physical address: 6042 The Plaza Charlotte, NC 28215.

In view of the circumstances, the complainant humbly asked for an extension of time subject to the commission directive within which to comply with the Said Order.

Yours Faithfully,

francis sheka kanu

Francis Sheka Kanu

Complainant

CERTIFICATE OF SERVICE

I hereby certify, under penalty of perjury that on this 11th day of June 2025, served the forgoing document/Notice /Request upon all parties of record or name of person listed below via electronic mail, by mailing, delivering to courier a copy to each such person:

Ejike Dickson Eze

Sealines International

Seamates International Inc.

Maersk

George w. Wright

Narinder s. Parmar

John Greco

Signature

francis sheka kanu

Francis Sheka Kanu

Complainant

On Mon, Jun 9, 2025 at 11:02 AM Judges <Judges@fmc.gov> wrote:

Good morning,

Please see attached a “Second Order Requiring Complainant to File Motion for Leave to Amend and Proposed Amended Complaint,” issued by the Honorable Richard Ambrow, being served today in Docket No. 25-05. A brief statement acknowledging receipt of this order would be greatly appreciated.

Sincerely,

Office of Administrative Law Judges

Federal Maritime Commission

800 North Capitol St., NW

Washington, D.C. 20573

Tel: 202-523-5750

Email: judges@fmc.gov

APPENDIX B



FW: Docket No. 25-05 - Francis Sheka Kanu v. Ejike Dickson Eze dba Ejike International Trade Limited; Sealines International; Seamates International, Inc.; and Maersk

From Judges <Judges@FMC.gov>

Date Fri 6/13/2025 7:12 AM

To francesgats@gmail.com <francesgats@gmail.com>

Cc gwright@wright-associate.com <gwright@wright-associate.com>; John Greco <jgreco@bge-law.com>; nparmar@wright-associate.com <nparmar@wright-associate.com>; ejikeinternational89@gmail.com <ejikeinternational89@gmail.com>

Bcc Richard Ambrow <[REDACTED]>; Juanita Hutchins <[REDACTED]>

📎 1 attachment (264 KB)

(16) 25-05 Order Requiring Complainant to File Motion for Leave to Amend and Proposed Amended Complaint.pdf;

Mr. Kanu,

Going forward, please copy all parties in any communication with this Office.

From: Francis Kanu <francesgats@gmail.com>

Sent: Wednesday, June 11, 2025 3:04 PM

To: Judges <Judges@FMC.gov>

Subject: Re: Docket No. 25-05 - Francis Sheka Kanu v. Ejike Dickson Eze dba Ejike International Trade Limited; Sealines International; Seamates International, Inc.; and Maersk

June 11, 2025

Office of Administrative Law Judges
Federal Maritime Commission
800 North Capitol St., NW
Washington, D.C. 20573
Tel: 202-523-5750
Email: judges@fmc.gov

FRANCIS SHEKA KANU

Complainant,

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EJIKE DICKSON EZE, SEALINES INTERNATIONAL, SEAMATES INTERNATIONAL INC, and
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DOCKET NO. 25-05

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The subject matter above is relevant. Whereas, the complainant is in receipt of the order of the administrative law judge dated June, 09 2025.

The said order requires the complainant to file a Motion for Leave to amend the complaint, together with a Proposed Amended Complaint, no later than June, 24, 2025.

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In view of the circumstances, the complainant humbly asked for an extension of time subject to the commission directive within which to comply with the Said Order.

Yours Faithfully,

francis sheka kanu

Francis Sheka Kanu

Complainant

CERTIFICATE OF SERVICE

I hereby certify, under penalty of perjury that on this 11th day of June 2025, served the forgoing document/Notice /Request upon all parties of record or name of person listed below via electronic mail, by mailing, delivering to courier a copy to each such person:

Ejike Dickson Eze

Sealines International

Seamates International Inc.

Maersk

George w. Wright

Narinder s. Parmar

John Greco

Signature

francis sheka kanu

Francis Sheka Kanu

Complainant

On Mon, Jun 9, 2025 at 11:02 AM Judges <Judges@fmc.gov> wrote:

Good morning,

Please see attached a “Second Order Requiring Complainant to File Motion for Leave to Amend and Proposed Amended Complaint,” issued by the Honorable Richard Ambrow, being served today in Docket No. 25-05. A brief statement acknowledging receipt of this order would be greatly appreciated.

Sincerely,

Office of Administrative Law Judges

Federal Maritime Commission

800 North Capitol St., NW

Washington, D.C. 20573

Tel: 202-523-5750

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FEDERAL MARITIME COMMISSION
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v.

EJIKE DICKSON EZE DBA EJIKE INTERNATIONAL TRADE LIMITED; SEALINES INTERNATIONAL; SEAMATES INTERNATIONAL, INC.; AND MAERSK, *Respondents*.

DOCKET NO. 25-05

Served: May 28, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER REQUIRING COMPLAINANT TO FILE MOTION FOR LEAVE TO AMEND AND PROPOSED AMENDED COMPLAINT

On May 6, 2025, I issued an Order to Show Cause (“OTSC”) that ordered Respondent Ejike Dickson Eze DBA Ejike International Trade Limited (“Ejike International Trade”) to respond to the Complainant’s Verified Complaint (“Complaint”) no later than May 20, 2025. The OTSC warned Ejike International Trade that failure to respond may result in the issuance of a default judgment against it.

Although Respondent Ejike International Trade failed to respond to the OTSC, upon consideration of the record, I do not enter default judgment against Ejike International Trade pursuant to 46 C.F.R. § 65(b) because Complainant fails to state a plausible claim for relief. Therefore, Complainant must file a Motion for Leave to Amend the Complaint, together with a Proposed Amended Complaint, **no later than June 4, 2025**. Failure to comply with this Order may result in the dismissal of Complainant’s claims against Ejike International Trade for failure to prosecute pursuant to 46 C.F.R. § 72(b).

I. Background

A. Allegations in the Complaint

On March 10, 2025, Complainant filed his Complaint.

In general, Complainant alleges that on June 5, 2021, he entered into a contract with Ejike International Trade that provided that he pay \$4,134 in order to have a container shipped from Charlotte, North Carolina, to Queen Elizabeth Port in Sierra Leone, with an estimated arrival date of August 25, 2021. (Complaint, ¶¶ IV.A-IV.C). The container was booked for transportation by Maersk through its agent SeaLines International and SeaMates International (“SeaLines”). (Complaint, ¶¶ IV.E-IV.F). The container, however, was routed through the wrong

booking number, and was shipped to Pointe Noire in Congo on November 18, 2021. (Complaint, ¶¶ IV.G-IV.H). In June 2022, an employee of SeaLines contacted Maersk, but Maersk offered no help other than providing an email address to the SeaLines employee. (Complaint, ¶ IV.L). Complainant’s agent convened a meeting between Complainant, Ejike International Trade and a SeaLines’s employee, where they agreed to hire an agent in Congo to facilitate moving the container to Sierra Leone with SeaLines defraying the cost. (Complaint, ¶¶ IV.E-IV.F). Nevertheless, Ejike International Trade demanded an additional \$2,000 from Complainant to have the container moved, which Complainant paid. (Complaint, ¶ IV.N). The check in the record is dated November 21, 2023, and states that it is for “demurrage on charges Port Noir[.]” (See Complaint, PDF page 63¹).

The Complainant argues he is entitled to \$80,000 in reparations. (Complaint, ¶ VII). He cites four statutory provisions to support his claim for reparations: 46 U.S.C. §§ 41102(a) and (c), 41104(a)(4), and 41301(a) (which Complainant refers to by its former citation, § 1710(a)). Complaint, ¶¶ IV.P.1-4).

B. OTSC

As noted in the introduction, on May 6, 2025, I issued the OTSC.

The OTSC noted that Respondent Ejike International Trade failed to respond to the Complaint, and required it to respond no later than May 20, 2025. The OTSC also warned Ejike International Trade that a default decision may be entered against it for failing to respond timely.

The OTSC was mailed to the address in the record for Ejike International Trade. There was no returned mail. Therefore, it appears that Ejike International Trade received the OTSC.

II. Analysis – Default Judgment is Not Entered Against Ejike International Trade

Ejike International Trade did not respond to the Complaint. A party to a proceeding may be deemed to be in default if that party fails: “to answer, to respond to a dispositive motion within the time provided, or otherwise to defend the proceeding[.]” (46 C.F.R. § 502.65(a)(2)). “When a party is found to be in default, the Commission or the presiding officer may issue a decision on default upon consideration of the record, including the complaint” (46 C.F.R. § 502.65(b)).

I considered the record. Assuming the allegations in the Complaint are true, and drawing reasonable inferences in Complainant’s favor, (see *MAVL Capital, Inc. v. Marine Transp. Logistics, Inc.*, Dkt. No. 16-16, 2020 WL 13512925, at *5 (FMC Oct. 29, 2020) citing *Maher Terminals, LLC v. The Port Authority of New York and New Jersey*, 34 S.R.R. 35, 2015 WL 9426189, at *12 (FMC Dec. 18, 2015)), Complainant has not set forth any plausible claims against Ejike International Trade upon which relief may be granted. In particular:

- **Untimely** – Complainant seeks \$80,000 in reparations. A complainant may seek reparations for an injury caused by a violation of the Shipping Act “[i]f the

¹ The exhibits to the Complaint are not numbered. I refer to it by the PDF page.

complaint is filed within 3 years after the claim accrues.” (46 U.S.C. § 41301(a)). Complainant allegedly contracted for the transportation of a container in June 2021, and the container arrived in the wrong location in the fall of 2021. (*See* Complaint, ¶¶ IV.A-IV.G). These events occurred over three years before the complaint was filed on March 10, 2025. Non-monetary relief is not time-barred, but, as discussed below, Complainant alleges no plausible claim for relief.

- **Lack of Plausible Allegations of a Violation of § 41102(c)** – The Commission identified five elements of a claim under § 41102(c). (46 C.F.R. § 545.4). The second element is that the alleged acts or omissions are occurring on a normal, customary or continuing basis. The Complaint alleges that Complainant’s container was shipped to the wrong destination and the error was not corrected. (Complaint, ¶¶ IV.G-IV.O). Although the Complainant alleges that these facts show that Respondents failed to establish reasonable practices (*see* Complaint, ¶ IV.P.1.(a)-(c)), that is not sufficient to allege a plausible claim. A complaint must contain sufficient factual matter to “state a claim to relief that is plausible on its face.” (*Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007)). A claim “has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.” (*Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009)). “A pleading that offers ‘labels and conclusions’ or ‘a formulaic recitation of the elements of a cause of action will not do.’” (*Iqbal*, 556 U.S. at 678 (quoting *Twombly*, 550 U.S. at 555)). Alleging that a container was shipped to the wrong location, and asserting that there was a failure to establish a reasonable practice, without more, does not constitute a plausible claim that the act or omission was occurring on a normal, customary or continuing basis. Indeed, the Complainant alleges that it was “apparent and obvious” that there was “negligence[.]” (Complaint, ¶ IV.H), thereby undermining any allegation that the act or omission was occurring on a normal, customary or continuing basis.
- **Lack of Plausible Allegations of a Violation of § 41102(a)** – Complainant alleges a violation of § 41102(a).² That section provides that a person may not, by use of false or other unjust or unfair means: “obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply.” There are no allegations in the Complaint of any attempt to obtain ocean transportation for property at lower rates or charges than would otherwise apply.

² The Complaint incorrectly quotes § 41102(a) as prohibiting “‘unfair or unreasonable practice in the handling of property.’” (Complaint, ¶ IV.P.3.). Under the heading of § 41102(a), the Complaint alleges a combination of common law claims (*e.g.*, Respondents made misrepresentations), as well as claims under § 41102(c) (such as failure to conduct fair and reasonable business practices). (Complaint, ¶¶ IV.P.3.(a)-(c)). Common law claims are not properly before the Commission. And, as noted in the main text, the claims under § 41102(c) fail because the Complaint does not plausibly allege that any act or omission is occurring on a normal, customary or continuing basis.

- **Lack of Plausible Allegations of a Violation of § 41104(a)(10)** – Section 41104(a)(10) states that: “A common carrier, either alone or in conjunction with any other person, directly or indirectly, may not . . . unreasonably refuse to deal or negotiate[.]”³ Complainant alleges that Ejike International Trade is an ocean freight forwarder and shipping agent. (Complaint, ¶¶ III. and IV.E). There is no allegation that Ejike International Trade is a common carrier. For that reason alone, Complainant appears to fail to state a claim under § 41104(a)(10). (*OJ Commerce v. Hamburg Südamerikanische Dampfschiffahrts-Gesellschaft A/S & C., KG and Hamburg Sud North American, Inc.*, Docket No. 21-11, 2024 WL 4034610, at *1 n.2 (FMC Aug. 27, 2024) (“The ALJ denied all claims against HSNA because it found HSNA not to be a common carrier, instead HSNA was acting as a disclosed agent on behalf of HSDG. I.D. at 37. Neither side challenged this conclusion, and no evidence suggests it should be reviewed. . . .”)).
- **Lack of Plausible Allegations of a Violation of § 41301** – Though the Complaint also references 46 U.S.C. § 41301(a) by its former citation, § 1710(a) (Complaint, ¶ IV.4), that section does not prohibit any conduct or otherwise provide a basis for a claim. Instead, that section permits the filing of a complaint.

Because there are no plausible claims for relief against Ejike International Trade, I do not issue a decision on default. Instead, due to a lack of plausible claims, I will allow Complainant to file a motion for leave to amend his complaint against Ejike International Trade, together with a proposed amended complaint against Ejike International Trade, **no later than June 4, 2025**. Failure to comply with this order may result in Complainant’s claims against Ejike International Trade to be dismissed for failure to prosecute pursuant to 46 C.F.R. § 72(b).⁴

III. ORDER

Based on the above, it is:

HEREBY ORDERED that **Complainant** must file leave to amend its complaint, together with a proposed amended complaint, **no later than June 4, 2025**.

Richard Ambrow
Administrative Law Judge

³ The statute was amended by the Ocean Shipping Reform Act of 2022 (“OSRA 22”), to add the following after “negotiate”: “, including with respect to vessel space accommodations provided by an ocean common carrier[.]” (*See* OSRA 22 (Pub. L. 117-146), Section 7(a)(1)(D)). Although OSRA 22 was effective June 16, 2022, the amendment does not appear to be relevant to this proceeding.

⁴ The Motions to Dismiss by Maersk and SeaLines, as well as the Complainant’s failure to respond to the Motions to Dismiss or the OTSC, will be addressed in a future order.